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The importance of Aboriginal history for practitioners

Bindi Bennett

Introduction

To know where we are going, we must know where we have been.

This chapter outlines the history of Aboriginal peoples from European colonisation to the present day and discusses past policies and practices that continue to impact on their wellbeing. It provides an Aboriginal perspective on the history and policies that have been important in Australia. All social workers should be aware of these events to develop effective, responsive and useful practice.

This chapter does not detail every historical event that has impacted Aboriginal people. The intention is to provide a broad social work perspective about the history and policies that have impacted Aboriginal people and to highlight the important events and developments. This chapter focuses on Australian Aboriginal peoples.

History

Many social workers know little of the history surrounding Aboriginal people when they enter their profession. Aboriginal people also may not know all the history that has occurred in their communities and others across Australia. Often this lack of knowledge may be due to individuals or their parents/grandparents being removed from their traditional Country. Many social work educators and students are puzzled by the fact that historical events, such as the Stolen Generations, remain significant for the thinking and behaviour of Aboriginal peoples and their communities. This chapter addresses some of the gaps in historical knowledge and identifies why this history still resonates in the lives of Aboriginal communities.

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The history of Australia has continued to impact Aboriginal people and is reflected in a range of health and social issues including: intergenerational trauma; substance abuse; mental and physical health; poverty; over representation in the criminal justice system; family violence; loss of culture; and loss of family connection. All these issues have their roots in the history of colonisation. Unfortunately, the social work and welfare professions and the system more broadly have inadvertently played a role in this process. That is why it is critical to know and reflect on the role of social work in this history when working with Aboriginal individuals, families and communities. It is the responsibility of social workers to arm themselves with this knowledge, and to understand that this history will be part of the fabric of the community and must be acknowledged and reflected in their practices.

Aboriginal people are often social work clients due to intergenerational disadvantage. For many decades services and service providers have been highly Eurocentric in their practices, with a lack of cultural knowledge, and this has affected their relationships with Aboriginal people. For this reason, social workers entering an Aboriginal community are often met with wariness, distrust and cynicism. Consequently, social workers generally do not have a very good reputation in Aboriginal communities and this makes it difficult for them to build sustaining and cooperative relationships. To overcome this hostility social workers need be knowledgeable of and empathetic with Aboriginal history when working with Aboriginal people (Ralph, 1997).

Pre-contact

Aboriginal culture is believed to be among the oldest continuous cultures in the world (Dockery, 2010) and archaeological evidence indicates that Aboriginal people have been living in Australia for at least 65,000 years (Clarkson et al., 2017). Others suggest that this is an underestimate, and that 200,000 years is a more accurate figure (Broome, 1982). Aboriginal people believe that they have inhabited the land since the beginning of time and are part of the Dreamtime itself, where time is cyclic and does not necessarily progress in a linear fashion (personal communications, Uncle Stan Grant, 2010). 'The past, present and future are not separate concepts in all worldviews … only one time and place, that creation is forever unfolding yesterday, today and tomorrow' (Wal Wal Ngallemetta in Yunkaporta, 2009, p. 2). At the time of European settlement in the late 18th century there were estimated to be around 500 tribal groups.

A common feature of Aboriginal culture was the emphasis placed on kinship, and the relationships within families and members of Aboriginal communities. Aboriginal people concentrated upon maintaining and sustaining their Country, relationships and ecosystems.

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Prior to invasion, the Aboriginal population comprised a diverse group of communities, each shaped by personal, group and community identities determined by territory and language groups, law definitions (totems and clans) and kinship systems (The University of Sydney, 2014). The collective single category of 'Aboriginal' is a result of the early colonists' misperceptions and lack of understanding of the Australian Indigenous peoples. Today the category 'Aboriginal' is a unitary social construct that deflects attention away from the diverse communities and language groups that make up the Aboriginal population. Many people claim their descent from a particular Aboriginal clan, tribe or language group for example Wiradyuri, Gamilaroi (Gamilaraay), Ngunawal, Biripi, Darkinjung, Eora and Yolngu. These names are referred to by Aboriginal people as the 'Country' they belong to or come from. Aboriginal people's genealogy is often traced by this Country and by the people who lived on this Country (for example, someone might identify him or herself in this way: I am James (pseudonym) Blue family from Darkinjung Country). Individuals also identify themselves via broader terms that are regionally specific and include Koori (generally New South Wales and Victoria region), Murri (Queensland), Nyungah (Western Australia), Anangu (South Australia), Yolngu (Northern Territory) and Palawa (Tasmania).

Colonisation was imposed in many countries, and needs to be viewed in the context of European imperial expansion. In Australia, colonisation relates to the period of European expansion in which Britain and its European neighbours invaded, settled and exploited the country (Smith, 2006). Since colonisation there have been many policies and actions that have negatively impacted Aboriginal peoples.

Dispossession

In 1770, Captain James Cook, aboard the vessel *Endeavour* sailed into Botany Bay and Sydney Cove in New South Wales. This area was to become the first site for British settlement.

Aboriginal people lacked two things that would have made effective defence possible against the British. The first was a military technology, and the second was the organisational capacity for large-scale warfare (Prentis, 2009). Europeans recognised 'civilisation' as represented by a group having a key leader, and by that group owning and controlling the land (in the form of infrastructure, religion, written communication, animals and agriculture). Aboriginal people appeared to lack an organised leader (such as a King or Queen); had no herds of animals; and no written communication. This was evidence enough to the invaders that there was no civilisation or culture.

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Cook chose to regard the land and area as *terra nullius*, which means empty land (Herbert in Bolt, 2009, p. 11) or, more importantly, a land empty of everything except flora and fauna. Aboriginal people were therefore not considered people, let alone a unified people with a recognisable government, and so a treaty[1] was not offered. Land perceived to be/designated as *terra nullius* could be colonised (Bolt, 2009, p. 11). Social evolutionary theory of the time reinforced the perception that Aboriginal people were 'primitive' and therefore 'inferior' (Muecke, 1992). This theory also influenced the disciplines of anthropology, history and literature, and dominated the European understanding of Aboriginal people in Australia. Aboriginal people were treated as problematic, needing to be taken over by a superior race who would commandeer the empty and untilled land (Reynolds, 1987). Based on *terra nullius*, sovereignty and ownership of the land was claimed by British authorities.

Meanwhile in Europe there was an industrial revolution developing and the emergence of the Age of Enlightenment. 'Progress' was being made through the manufacturing of goods such as cotton and steel and the expansion of world trade. However, social services were minimal. Due to unemployment, poverty and overcrowding, petty crime became an issue. With no space to house the growing number of people convicted, Britain needed somewhere to locate their criminals preferably at some distance from the cities and, if possible, away from Britain. On '26 January 1788 British ships containing 290 seamen, soldiers and officials and 717 convicts sailed into Port Jackson' (Broome, 1982, p. 22), and over the next 80 years, over 160,000 convicts were transported to Australia (Hughes, 1986).

European settlement was often met with resistance from the Aboriginal population. Broome (1982) states that there were at least 17 violent encounters between Aboriginal people and British people in the first month of colonisation, and three factors gave rise to this hostility. The first was that the colony was established as an open prison, leading to some angry prisoners showing hostility to Aboriginal people. The second was that the British came with preconceived ideas, including the view that Aboriginal people were inferior and less worthy; and so, it can be imagined that they treated Aboriginal people with disrespect and Aboriginal people may not have reacted kindly to this treatment. Thirdly, the British dispossessed Aboriginal people of their land and possessions. The absence of a unified government or a military organisation limited the ability of the Aboriginal people to challenge and resist colonisation.

[1]For example, in 1840 the first settlement in Aotearoa (New Zealand) the Treaty of Waitangi was signed. This treaty served as a contract between the Māori and British Crown, indicating the Māori could retain ownership of their land, but would recognise British sovereignty.

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The frontier hostile encounters meant that there were numerous reprisals and massacres of Aboriginal peoples across Australia (Reynolds, 1987), resulting in a dramatic decline in the population. It is estimated that the pre-contact population of Aboriginal people was over one million. By 1888 this was reduced to 60,000 and by 1911 only 31,000 (Evans, 2004, p. 107). A good example of this dramatic decline in population is afforded by the history of the Aboriginal population in Tasmania, where from 1824 to 1831 the population declined from approximately 1,500 to 350 (Reynolds, 1999, p. 71). The Tasmanian Government then removed the remaining population to Flinders Island to 'protect' them, where what began as a population of over 200 was, by 1847, reduced to 47 by disease and social deprivation (Reynolds, 1999).

Diseases brought by the settlers also had an impact on death rates of the whole Aboriginal population. Malnutrition, crowded living conditions and diseases, such as leprosy, smallpox and syphilis increased the rates of morbidity and mortality (Sherwood, 2010).

Colonisation

Settlement and expansion by non-Indigenous settlers also meant that the Aboriginal people's access to their country, and their ability to maintain societal, legal and religious obligations was reduced (Reynolds, 1987; Sherwood, 2010). The destruction of the social and political infrastructure had a significant impact on the ability of Aboriginal people to pass on their knowledge and culture to their children and young people.

The discipline of anthropology played an integral role in the perception of Aboriginal people as primitive and therefore inferior. Baldwin Spencer and Frank Gillen are considered to be the founding fathers of Australian anthropology because they were the first to adopt a 'scientific' anthropological approach to Aboriginal people (Charlesworth, 2005, p. 6). Spencer and Gillen presented arguments that Aboriginal people were not only inferior but culturally, intellectually and biologically unable to progress. Other misguided anthropologists informed by these perspectives went on to conduct much of the early research on Aboriginal peoples, cultures and communities, studying Aboriginal people for their 'otherness'. Much discourse occurred with regard to Aboriginal people through 'scientific' testing and 'real' characteristics such as skin colour and blood quantum (Hollinsworth, 1992).

A distortion of Darwinian theory was used by some to mean that Aborigines were at such a level of primitiveness that, in the face of the 'civilised' British, they would soon become extinct (Tatz, 1999). Missions and

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reserves[2] were established from the late 1700s to move Aboriginal people to and they were seen as a place where Aboriginal people could die out (Tatz, 1999) isolated from the settled white communities. At the same time, there was an increase in often-forced relationships between white men and Aboriginal women that resulted in 'half-caste' (sic) children being born. This was considered 'alarming' and a 'problem' by white authorities, and the general non-Indigenous community, not for any humanitarian or moral reasons, but because as it meant that Aboriginal people were not dying out but, in fact, were increasing in numbers. There were, however, some who held a different opinion about 'half-castes' (sic) who were known to have white fathers and therefore could be assimilated into the dominant society. This is discussed in more detail later in the chapter.

Protectionism

In response to social evolution and the misinterpretation of Darwinian theory, protectionism began in the late 1800s. Inherent in this policy was the view that Aboriginal people needed to be segregated and protected while they died out. Government settlements and church operated missions were established to facilitate the relocation of Aboriginal people either forcibly, through encouragement or by coercion. As one source (not named) remarked 'all the mission can really achieve for them is a kind of Christian burial service' (Tatz, 1999, p. 326).

Missions and reserves were a way of controlling Aboriginal people and restricting them to limited areas. In New South Wales, the Maloga Reserve was the first reserve established in 1778 and by 1939 there were at least 180 reserves created (NSW Department of Aboriginal Affairs, 1998). Although not necessarily established by churches, reserves and missions were generally administered and controlled by missionaries and religious advocates. On mission reserves, Aboriginal people were 'civilised' by being taught hymns, scripture, housework, horticulture, livestock management and some skilled trades (NSW Department of Aboriginal Affairs, 1998). Inevitably, many reserves tried to convert Aboriginal people to Christianity. A. O. Neville (1875–1954), Chief Protector of Western Australia at this time and a strong advocate for removing Aboriginal children from their families, wondered whether blacks (sic) were needed by the missions to convert them to Christianity, or whether the missions needed blacks (sic) to create work for the religious peoples (Neville, 1947).

[2] Missions were compounds established by churches and controlled by the Aboriginal Protection Board. Reserves were established by the government and also controlled by the Aboriginal Protection Board (ABC, 2012).

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In 1883 a Protector of Aborigines[3] and a Board for the Protection of Aborigines were established (HREOC, 1997). Between 1860 and 1922, protective legislation was passed in all mainland states requiring Aboriginal people to become wards of the State, which then acquired legal guardianship of their children (McGregor, 2002). Protectionism controlled various aspects of Aboriginal people's lives, including mobility, marriage, employment, nutrition, education and wages, sexual behaviour, social restrictions and cultural practices, and citizenship (Westerman, 1997). Missions ran schools, provided water, prosecuted 'offenders', controlled income and forbade traditional cultural practices and languages (Tatz, 1999). This means that on the mission, Aboriginal people were denied the right to speak their language, retain their tribal name or participate in traditional ceremonies (Reynolds, 1987).

By 1910, all free and useable land had been taken by colonists or the Crown (Benedek as cited in Jacobs, 2009). Aboriginal people at the time were not recognised as citizens. They were denied the ability to purchase land (Attwood, 2003) and forced to remain on the mission/reserve, increasing their dependency and developing a welfare mentality for handouts (such as food in the form of flour, tea and sugar). The Chief Protector had the power to move Aboriginal people into towns, place them in or onto reserves and place 'uncontrollable' Aboriginal people into gaol indefinitely without trial. Legislation and policies controlling Aboriginal people led to forced removal of Aboriginal people from their ancestral lands. The placement of large numbers of different Aboriginal language and clan groups on to reserves or missions led to widespread familial, social and cultural disruption, as well as conflict. For the first time those who would normally not have shared the same space due to kinship taboos and location of different geographical living areas were forced to live together in the confining and small space of the mission settlement. This inevitably created conflict.

Although under this NSW Protection Act some Aboriginal people could be paid, this money was often kept 'in the care' of the Native Protector to whom the owner of the money would have to apply. Education was mostly denied to Aboriginal Peoples. In 1915 the NSW Protection Act was passed and endorsed in most states and gave the federal government powers, such as the removal of children deemed to be in need of care and protection (Reynolds, 1996; Westerman, 1997).

After World War I, when returning Australian soldiers and their families were given reserve land by the government in recognition of their service, Aboriginal men who fought in the same war were not entitled to land, and

[3] A person appointed to look after Aboriginal people nationally and to promote their civilising and Christianity (Ranzijn, McConnochie & Nolan 2009).

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received nothing (Hall, 1989). This government decision led to further dispossession of Aboriginal people, whose traditional lands had now been given to non-Indigenous veterans. It resulted in forced migrations of many Aboriginal peoples into towns and cities, where they were not welcomed.

> The experience of the war has brought about changes which will leave little room for the native to pursue his existence in the manner of his forbears; his emergence into civilization or acceptance of a fuller civilization is being forced upon him whether he likes it or not. (Neville, 1947, p. 25)

The policy of protectionism denied the validity of Aboriginal culture and attempted to remove it from Australia. It failed to recognise the skills, knowledge sets and competence that Aboriginal people brought with them as skilled employees and caretakers of their families. Under these policies, which assumed that Aboriginal people were incapable of caring for themselves, non-Indigenous caretakers were appointed to take control and responsibility of Aboriginal lives (Ranzijn et al., 2009).

These protectionist policies further restricted Aboriginal people's ability to participate in their culture. Protectionism at the time had the capacity to demean, demoralise and keep Aboriginal people impoverished. The legacy of these policies Australia-wide has had an enduring impact on the self-esteem and identity of many Aboriginal people; 'It remains one of the mysteries of history that Australia was able to get away with a racist policy that included segregation and dispossession and bordered on slavery and genocide' (Knightley, as cited in Neill, 2002, p. 4).

Assimilation

Assimilation was adopted as an official policy at the 1937 'Native' Welfare Ministers Conference in Perth (Neville, 1947; Rigney, 1999). The assimilation policy assumed that Aboriginal culture and values, beliefs and worldviews were of little to no value in the new Australia, and that these aspects of their culture and identity should be 'assimilated' into the dominant Western European culture. 'Whiteness' was seen as a more valuable signifier of racial superiority, hence a programme of regulated reproduction to 'breed out' the colour of Aboriginal people commenced (McGregor, 2002). The aim of the policy was that Aboriginal people would follow the same way of living as other Australians, including observing the same customs and beliefs (McConnochie et al., 1991). The policy was designed so that Aboriginal people would become just like other Australians, but it also went deeper than this and had other implications.

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Dr Cecil Cook, Chief Protector and Medical Officer of the Northern Territory, at the time outlined the view:

> Generally, by the fifth and invariably the sixth generation, all native characteristics of the Australian aborigine are eradicated. The problem of our half-castes [sic] will quickly be eliminated by the complete disappearance of the black race, and the swift submergence of the progeny in the white. (cited in HREOC, 1997, p. 137)

In 1925 an Adelaide anthropologist, Dr Herbert Basedow, suggested that because of the close DNA between Aboriginal people and Caucasians, children of mixed heritage could be rapidly whitened without the danger of Aboriginal characteristics (such as darker skin colour, broad nose and curly hair) reasserting themselves in later generations (Basedow, 1925, p. 59). The Western Australian Chief Protector, A. O. Neville, developed a three-point plan. First the 'full bloods' would die out; second, the 'half-castes' (sic) would be taken away from their mothers and families; third, marriages among 'half-castes' (sic) would be controlled and intermarriage with the white community would be encouraged. In this way, it would be possible to eventually forget that there were ever any Aborigines in Australia (A. O. Neville, cited in Manne, 2004, p. 219; Neville, 1947; Tatz, 1999).

Breeding out the colour sought to ensure a White Australia (McGregor, 2002). People of the time were opposed to those who were not white, saying the continuing infiltration of white blood would finally 'stamp out' the black colour, 'which, when all is said and done, is what we object to' (Jacobs, cited in McGregor, 2002, p. 294). People of this opinion supported assimilation, making statements such as 'our antipathy to darkish skin colour and broad noses … refers to the "breeding out" of Aboriginal physical characteristics will be realised in two or three generations' (Elkin, cited in Neville, 1947).

The assimilation policy still denied basic rights. 'It stopped them from raising their own children, stopped freedom of movement, having access to education, receiving award wages, marrying without permission, eating in restaurants, entering a pub, swimming in a public pool or having the right to vote' (www.cityofsydney.nsw.gov.au). Choo (1990), a historian, noted that if children are removed from their communities, then future Elders, future workers, future leaders and the future of the culture are also removed. In other words, important carriers, interpreters and transmitters of the culture are eliminated.

Reading A. O. Neville's book provides a powerful insight into why and how assimilation policy was successful in Australia. Between 1936 and 1940, Neville was the protector of native races and the vice-chairman of

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the Aborigines' Welfare Board. He was also an anthropologist. He writes about how white people of the time saw that bringing the Aboriginal people into the general economic, recreational and religious life of white Australia would save them from dying out (Neville, 1947). To achieve this aim, the colonisers began to remove Aboriginal children, locating them into homes with non-Aboriginal families so that they could learn about White Australian culture.

Cultural genocide

Several writers have argued that the political and social actions of early colonial contact within Australia were a form of 'genocide' (Evans, 2004; Kieken, 1999; Manne, 2004; Moses, 2004; Weaver, 2001). But these inhumane policies continued into the 1970s, during which the Australian government authorities removed large numbers of Aboriginal children from their families in order to assimilate them. These have become known as the Stolen Generations (Dodson, 2008; Gilbert, 1995).

In 1946, the United Nations made genocide illegal under international law and began to consider whether genocide had been perpetrated on Aboriginal people (Evans, 2004; Manne, 2004). This issue was raised again in 1997 with the National Inquiry into the Separation of Aboriginal and Torres Strait Islander Children, named the *Bringing Them Home* report (Moses, 2004) where it states that the policy and practice of Aboriginal child removal was cultural genocide (HREOC, 1997; Kieken, 1999; Manne, 2004).

Genocide is not necessarily the immediate violent destruction of a nation. It is a word that can apply to coordinated plans and differing actions that aim to destroy the foundations and life of a group (Lemkin, as cited in Manne, 2004, p. 268). Disintegration of political and social institutions, language, religion, economic existence, personal security, health and dignity could be the long term effects of a planned genocide (Manne, 2004). When looking at Australian history, we can see that Aboriginal economic stability was irreversibly damaged by taking land, resources and wealth. Political institutions were replaced by European administration, and social systems were replaced by the imposition of European laws. All forms of expressive culture including language were prohibited, and the system of passing on culture was restricted by moving people from the same Country into differing areas and on to missions. Unequal food rationing and lack of basic nutrients, overcrowding, mass killings and inadequate shelter all took their toll. Finally, all religious practices were prohibited (Manne, 2004). Given the definitions of 'genocide' noted above, it can then be seen why authors have argued that what happened in Australia was indeed an act of cultural genocide.

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Aboriginal children were removed from their families on the pretence of being educated and thus 'civilised', although Aboriginal children had also been kidnapped and exploited as slaves previously (NSW Department of Aboriginal Affairs, 1998; Reynolds, 1987; Westerman, 1997). Being Aboriginal entitled the government to remove a child from his or her family without having to give any lawful explanation (Sherwood, 2010).

The exact numbers of Aboriginal children removed by the authorities is not certain. The National Inquiry into the Separation of Aboriginal and Torres Strait Islander Children from their Families (HREOC, 1997) estimated that between 1788 and 1997 up to 50,000 Indigenous children were removed from their families and placed in institutions or white foster homes (Baldry and Green, cited in Zubrzycki & Bennett, 2006, p. 194). Others calculate that at least 100,000 children across Australia were taken (Tatz, 1999). It is estimated that from 1912 to 1962, two out of three mixed descent Aboriginal children spent some of their lives away from their parents because of the removal policy (Austin, cited in Kieken, 1999, p. 303). In addition, at least one in ten, and as many as one in three, children were removed between 1910 and 1970 (Anderson, 2002, p. 239). This means that most Aboriginal families currently living in Australia have been affected by these destructive policies over one or more generations (HREOC, as cited in Kieken, 1999, p. 303). The devastating consequences of Stolen Generations have been compared to the effects of the Nazi holocaust in terms of the lasting effect on the race (Neill, 2002). The practice of forced removal continued until well into the 1970s, and possibly beyond (HREOC, 1997; McGregor, 2002).

The clear indication that impacts of child removal remain an issue for the present day is the rate of over-representation of Aboriginal children in the current child protection system. For example, in 2014–15, the substantiation rate of abuse for Indigenous children was almost seven times the rate for non-Indigenous children (AIHW, 2016). In 2015, the rate of Indigenous children on care and protection orders was nine times that for non-Indigenous children, and the rate of Indigenous children in out-of-home care was 9.5 times the rate for non-Indigenous children (AIHW, 2016). The *Bringing Them Home* report (HREOC, 1997) noted that two of the underlying causes of this over-representation in the child welfare system are the legacy of past policies of forced removal and intergenerational effects of previous separations from family and culture. Some argue the continued over-representation of children in this system remains a consequence of their family members removal from their families and kinship networks (HREOC, 1997).

The policy of removing children from their families was misconceived and based on acts and ideas current at that time (such as assimilation) and, for some proponents, the desire to do good (Neville, 1947). However,

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it is difficult to excuse these acts by suggesting that they were based solely on misguided social and humanitarian attitudes when people such as the Chief Protector and elite Australians of the time were quoted as saying:

> Are we going to have a population of 1,000,000 blacks in the commonwealth, or are we going to merge them into our white community and eventually forget that there ever were any Aborigines in Australia? (A. O. Neville, cited in Manne, 2004, p. 219)

> Every endeavour is being made to breed out the colour.
>
> (Dr Cecil Cook, cited in Manne, 2004, p. 231)

It was not just racism that drove governments to remove children, it was a way of dispossessing Aboriginal people of their land and controlling distinctive groups that were perceived as threatening. 'Caregivers and other authorities sought to sever the intimacy and sensory connections the children had developed with their homelands, a crucial task in consolidation of settler claims to the land' (Jacobs, 2009, p. xxxii prologue). As in many other Indigenous colonies in the world, the colonisers sought to sever intimate bonds between children and their families, land and culture to conquer the land and its people.

In 1997, the National Inquiry into the Separation of Aboriginal and Torres Strait Islander Children was directed to identify and document the past laws, practices and policies that resulted in the separation of these children from their families, and to examine different ways in which those affected by these removals could be compensated. The Inquiry was also tasked with reviewing current laws, practices and policies that led to the removal of Aboriginal children and advising on any changes that needed to be made (HREOC, 1997). The report used direct testimonials to illustrate the effects of this policy as well as government and organisation reports. The report made recommendations for change, many of which have not yet been implemented twenty years later.

The National Inquiry recommended that all professionals who work with Aboriginal children, families and communities receive in-service training about the history and effects of forcible removal and that all undergraduates and trainees in relevant professions receive, as part of their core curriculum, details of the history and effects of forcible removal (HREOC, 1997). It was stated that this should be done in consultation and partnership with Aboriginal communities and, where possible, delivered by an Aboriginal person.

The 1997 Inquiry found that forcible removal of children occurred from very early colonisation and continued for at least 150 years. It

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stated that the legacies that remain after forcibly removing children from their families and culture are complex and ongoing. Contemporary effects can be seen in the form of low educational achievement, homelessness, mental health issues such as post-traumatic stress disorder, depression and anxiety, anger and frustration, involvement with the law, low self-esteem, substance abuse, health issues, poverty and suicide (Ranzijn et al., 2009).

Positive changes and developments

Not all policies and changes imposed by government were negative for Aboriginal people, and nor were Aboriginal people passive bystanders as they often resisted oppressive government policies and actions. Aboriginal people fought for issues such as equal wages in the pastoral industry, improvements in education and housing, and for land rights. Citizenship and cultural revival were regarded as critical. In 1940 William Cooper, as the president of the Aborigines Progression Association, wrote to the Governor-General pleading for full citizenship for Aboriginal people (Prentis, 2009). His appeal was ignored. Debates about legislation, citizenship and land rights continued until the 1970s when the socioeconomic gap between Aboriginal people and other Australian citizens became so wide that the government of the time was forced to admit that the problems had to be addressed.

The Federal Council for Aboriginal Advancement (FCAA, later FCCATSI) was established in 1958. This national organisation represented Aboriginal people and mounted a range of political campaigns. These included a petition for constitutional change that led to the 1967 referendum, as well as demanding full integration and advocating for land and land rights.

In 1965 an Aboriginal activist, Charles Perkins, along with Chicka Dixon, led the Freedom Ride movement in New South Wales (Curthoys, 2002). A group of students joined the activists on a bus ride across New South Wales to raise awareness about the levels of disadvantage and racism experienced by Aboriginal people, and to unite against oppressive social policies. The Freedom Ride, which was influenced by the Black Panthers and the American civil rights movement, led to significant publicity about Aboriginal disadvantage, elevating the issue, which quickly became a national political issue (Curthoys, 2002).

The introduction of some key social reforms from the late 1960s was a turning point for the treatment of Aboriginal people in Australia. In May 1967, a constitutional referendum to include Indigenous people in the national census and to enable the Commonwealth Government to make laws on Aboriginal affairs passed with a 'Yes' vote of almost 91 per

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cent. Before 1967, Aboriginal Affairs was a state responsibility and the Commonwealth Government was only in charge of Aboriginal people in the Northern Territory. The successful 1967 referendum led to Australian Aboriginals being recognised for the first time as full citizens in their own country, after 200 years of colonisation/settlement (Neill, 2002). This also meant that Indigenous people would be included in the national census for the first time.

In 1969 Aboriginal stockmen went on strike at Wave Hill, Northern Territory, to protest about unequal wages. This protest turned into the first sustained land rights claim. Having repeatedly rejected Aboriginal claims of equal pay for equal work during the 1930s and 1940s, the Commonwealth Conciliation and Arbitration Commission finally granted the Aboriginal stockmen equal wages. The decision had an impact nationally for Aboriginal people employed in other trades.

The Aboriginal tent embassy was erected on the lawns of Parliament House in Canberra in 1972 by a group of Aboriginal activists. The embassy was established in response to the refusal by the Coalition government of William McMahon to recognise Aboriginal land rights. The McMahon government had favoured conditional leases on the land on the condition that Aboriginal people made economic use of the land. The government also wanted to exclude all rights to minerals and forests on traditional lands (Ranzijn et al., 2009).

The Aboriginal tent embassy continues to promote Aboriginal rights and sovereignty. The embassy also continues its fight for land and mineral rights, political control of certain sacred sites and compensation for land that was stolen from Aboriginal people. These demands have been denied by all past and present governments (Prentis, 2009).

In 1995, the tent site was added to the Australian Register of the National Estate as the only Aboriginal site in Australia that is recognised nationally. The tent embassy has been contentious politically and socially and has been fire-bombed on several occasions (Message Stick, n.d.). At the site, there is a sacred fire that represents peace, justice and sovereignty. It has been kept alight since 1998 and remains a very powerful public symbol for Aboriginal human rights.

In 1972 the federal Labor government led by Prime Minister Gough Whitlam adopted the policy of 'self-determination' for Aboriginal communities. The aim of the policy was for Aboriginal communities to decide the pace and nature of their future development. Self-determination recognised that Aboriginal people had a right to be involved in decision-making about their own lives. Under this policy the government established organisations such as the Department of Aboriginal Affairs, Aboriginal Legal Aid, Aboriginal medical services and housing schemes (Westerman, 1997).

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The federal Liberal coalition government led by Malcolm Fraser, which came to power in late 1975, adopted the policy of 'self-management', which expected Aboriginal communities to manage locally funded government projects. Self-management, however, was restrictive as it did not necessarily mean self-determination or that the communities could influence the type of projects to be created. From 1983 to 1996 the Labor governments led by Bob Hawke and Paul Keating used both self-determination and self-management as key principles in their Indigenous affairs policies.

In 1976, the federal government passed land rights legislation for Aboriginal peoples in the Northern Territory. Most other states also have some form of land rights legislation in place, although the degree of control given to Indigenous peoples over the land differs significantly from state to state.

The Royal Commission into Aboriginal Deaths in Custody (RCIADIC) was established in 1987 to identify why so many Aboriginal people were dying in prison. Between January 1980 and May 1989, 99 Aboriginal people had died in custody. Aboriginal people were 16.5 times more likely than non-Indigenous people to die in custody between 1990 and 1995 (Commission,1991). The Commission made 339 recommendations and addressed issues such as unemployment, low levels of economic development, welfare dependency, health issues and cultural deprivation (Commission, 1991). A 2015 report by law firm Clayton Utz found that the bulk of the commission's 339 recommendations remained unimplemented or only partially implemented (Change the record, n.d.). In the post-RCIADIC decade, 1990 to 1999, there were a further 628 deaths (115 of which were of Indigenous persons) in police or prison custody, and a further 190 deaths (30 of which were of Indigenous persons) during police operations. Conversely, over the same period, deaths in prisons increased from 35% to 81% of all deaths in custody (Williams, 2009). This indicates the need for accountability in custodial and police settings is greater than ever.

In 1990, the Hawke government established the Aboriginal and Torres Strait Islander Commission (ATSIC). ATSIC was the Australian government body. Many Aboriginal programmes and organisations were managed and funded under the auspices of ATSIC. ATSIC was subsequently defunded under the Howard government after a review headed by Minister Ruddock considered ATSIC to be ineffective in representing Aboriginal Australians.

In 1991 the Council for Aboriginal Reconciliation was legislatively established, commencing a 10-year period of reconciliation across Australia, with 25 Aboriginal and Torres Strait Islander and non-Indigenous members of the Council appointed by the government. The Council was required to

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promote reconciliation between Aboriginal and Torres Strait Islander people and the wider Australian community. At the end of its 10-year period, the Council was required to make recommendations to the government on actions for achieving reconciliation. The Council developed a declaration towards reconciliation, a *Roadmap for Reconciliation*, which contained four national strategies and a final report titled *Reconciliation: Australia's Challenge*, which set out a comprehensive programme of activities to address the 'unfinished business' of reconciliation. The Council's proposals related to four areas: achieving economic independence; overcoming Indigenous disadvantage; recognising Indigenous rights; and sustaining the reconciliation process (Council for Aboriginal Reconciliation, 2000).

Reconciliation Australia was established by the Council in December 2000. This group still exists, but not everyone supports reconciliation, regarding it as a 'tick box' approach for organisations to meet and then ignore the real process that would be required to achieve the stated outcomes.

An outcome of reconciliation and pressure from the wider community to acknowledge the Stolen Generations was the establishment of Sorry Day, which has taken place on 26 February every year since 1998. It involves memorial services, commemorative meetings, survival celebrations and community celebrations to acknowledge and pay respect to the past and present members of the Stolen Generations (National Sorry Day Committee, 2012).

In 1992, Eddie Koiki Mabo, a Torres Strait Islander man, mounted a challenge to the notion of *terra nullius* in the High Court of Australia. Mabo's challenge was successful, resulting in the High Court rejecting the long standing doctrine and recognising that Aboriginal people were the first inhabitants. Now known as Mabo, this ground-breaking decision refers to two judgements in the High Court of Australia that, by overturning the notion of *terra nullius*, provided Aboriginal and Torres Strait Islander people the opportunity to pursue Native Title.

The Native Title Act (1993) found that Aboriginal and Torres Strait Islander people, who can prove a continuing connection with their land according to their traditions and customs, can apply for Native Title to have their rights to land under traditional law recognised in Australian law. To do this involves a prolonged and lengthy process of providing evidence to establish continuous connection to land. Aboriginal people have had their Native Title rights recognised under Australian law. There are still many groups who are fighting to be recognised.

In the past whenever land was confiscated and transferred by the Crown to other forms of title, the Native Title was eliminated. This means that private land cannot be subject to Native Title and

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recovered. However, the situation regarding pastoral land is still unresolved. The issue of whether pastoral leases extinguished Native Title was examined by the High Court in the Wik decision (Ranzijn et al., 2009) and in 1996 passed the High Court of Australia, who decided that Native Title could coexist with pastoral rights or leases. This meant that Aboriginal people could claim Native Title over pastoral land. Unfortunately, in situations where pastoral rights conflict with Aboriginal rights, pastoral rights still take precedence (Ranzijn et al., 2009). There have been 213 successful Native Title determinations; 54 have been rejected (Mara, 2014).

During the last 40 years, the United Nations has increasingly become an international site where Aboriginal people can discuss discrimination and abuse of their rights. The landmark Declaration on the Rights of Indigenous Peoples (2007b) took over 20 years of negotiation by Indigenous peoples, human rights experts and governments. This declaration is significant not only for the number of Aboriginal and Torres Strait Islander people who fought for it, but because they were also involved in the drafting of the Declaration (Australian Human Rights Commission, 2012). The Declaration describes a set of principles that are based on equality, partnership, consultation and cooperation between Indigenous peoples and governments. The Declaration recognises that Indigenous people have the right to self-determination, rights to traditional lands and to Indigenous institutions. Although not a legal document, the principles of partnership and cooperation are important for social workers who work for social justice and are committed to challenging systemic discrimination (United Nations, 2007b).

In 1996 the Liberal Party, under the leadership of John Howard, was elected to government and systematically began to overturn many of the hard-won reforms of the 1970s by abolishing the policy of self-determination, abandoning the collective Reconciliation movement, introducing the Native Title Amendments Act in 1998 and, in 2005, abolishing ATSIC (Manne, 2003). Indigenous programmes were significantly cut and mutual obligation policies were introduced. Prime Minister Howard also refused to apologise for the Stolen Generations, justifying that the wrongs that were committed in the past were now outweighed by the good that had been achieved for Aboriginal people (Hollinsworth, 1998).

In 2007 the *Little Children are Sacred* report (Wild & Anderson, 2007) was released, drawing attention to widespread allegations of Aboriginal child sexual abuse in the Northern Territory. The report was the catalyst for the Howard government's 2007 Northern Territory Emergency Response (NTER), commonly referred to as 'The Intervention'. Wild (2007) argues that the NTER failed to recognise the central point of the report's

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recommendations that Government consult with communities about how they would like these issues to be solved. Liberal politician Tony Abbott agreed when he stated that there had been 'no prior consultation' and that the intervention had been 'top down' in nature (ANTaR, 2011).

The intention and integrity of the Howard government's intervention in these issues has always been questioned: whether it was driven by the desire to address child sexual abuse or by the need to control Aboriginal land because of valuable mineral deposits. One of the main drivers of the intervention was the introduction of compulsory health checks for all Aboriginal children. This proposal quickly became contentious and problematic, with concerns that Aboriginal people would not comply and children would not be seen and treated appropriately. One proposal actioned by NTER was the conversion of 50% of Aboriginal Centrelink payments to food vouchers; this included family tax benefits, the job search allowance and sole parents' benefits to pay for food. This decision was intended to promote responsible behaviour and ensure that children were fed, removing the option of spending all or part of the money on alcohol and or cigarettes (ANTaR, 2009). The Federal Government instigated trials of the cards in other communities for both Aboriginal and Non-Indigenous peoples. There were mixed reports about the effectiveness of the programme, particularly doubts that it reduced binge drinking or alcohol-related violence. There were also reports of individuals changing address to avoid the welfare restrictions imposed by the card. (Parke, 2017). Statistics on child protection have shown that sexual abuse substantiations remain low in the Northern Territory, which was the main reason for the intervention in the first place (Australian Human Rights Commission (AHRC), 2012; FaHCSIA, 2011).

Despite these policy changes, Aboriginal people are still significantly disadvantaged compared to non-Indigenous Australians. Issues such as racism, sovereignty and compensation are still unresolved. Current social indicators also demonstrate that Aboriginal people continue to be sicker, have lower life expectancies, have lower educational qualifications, are less likely to be employed, have lower rates of home ownership, have less access to the internet, and are more likely to be involved with the criminal justice system (AHRC, 2012).

There are clearly longstanding and serious issues relating to Aboriginal communities that successive governments have failed to resolve. However, as discussed earlier, without collaborative community partnerships it is unlikely that real change (or at least broadly acceptable compromises) can be accomplished. According to Ife and Fiske (2006) there is a real need for human rights-based frameworks to both obtain and retain viability when working with Aboriginal communities.

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Recent policy

On 13 February 2008, Prime Minister Rudd publically apologised to the Stolen Generations (FaHCSIA, 2009). This historic event gave Aboriginal and Torres Strait Islander people hope that government policy and practice would finally change and become more inclusive, collaborative and humane. However, the successive governments have maintained many of the NTER intervention initiatives. The government has extended the intervention to encompass more of the Northern Territory and to include stricter guidelines around education (ANTaR, 2009). Its initiatives also include the Closing the Gap campaign, enacted in response to the Close the Gap campaign generated by Australia's leading Indigenous and non-Indigenous health bodies, non-government organisations and human rights organisations. The stated purpose of the Closing the Gap campaign is to address the large differences in mortality and morbidity health statistics between the Indigenous and non-Indigenous populations.

The Closing the Gap policy implies that once the gap is closed Aboriginal people will be culturally, psychologically and physically well again and equal to non-Aboriginal people in all socioeconomic regards. In the Prime Minister's Report (Commonwealth of Australia, 2018), it stated that while the targets to halve the gap in child mortality by 2018 have 95% of all Indigenous four-year-olds enrolled in early childhood education by 2025, and to halve the gap in Year 12 attainment by 2020 are on track, the targets to close the gap in school attendance, halve the gap in reading and numeracy, and halve the gap in employment by 2018 are not on track. The target to close the gap in life expectancy by 2031 is also not on track. Various Aboriginal community members continue to express concerns with Closing the Gap by reiterating the diversity of Aboriginal worldviews and the importance of Aboriginal understandings of relationships, family, community, nature and responsibility.

The United Nations' Special Rapporteur on Indigenous Human Rights reported in August 2009 that 'the NT intervention overtly discriminates against Aboriginal peoples, infringing their right of self-determination and stigmatizes already stigmatized communities' (ANTaR, 2009, p. 1). It goes on to say that the intervention has ignored Indigenous perspectives and social constructs. The Committee for Elimination of Racial Discrimination (CERD) states that the intervention continues to 'discriminate on the basis of race and that it reduces people's rights to land, property, social security welfare, adequate standards of housing, cultural development, work and legal remedies' (McMullen, 2011, p. 1).

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After many years of discussion and lobbying by Aboriginal and Torres Strait Islander people, the federal government made a commitment in 2010 to fund a new national representative body. The development of the National Congress of Australia's First Peoples was guided by Article 18 of the United Nations Declaration on the Rights of Indigenous Peoples (United Nations). This Article states that:

> Indigenous peoples have the right to participate in decision-making in matters that affect their rights, through representatives chosen by themselves in accordance with their own procedures, as well as to maintain and develop their own Indigenous decision-making institutions. (United Nations, 2007b)

The National Congress of Australia's First Peoples was established by an independent and Indigenous Steering Committee with the intention of giving Aboriginal and Torres Strait Islander people a voice in national affairs and active involvement in decisions that affect them. The Steering Committee, chaired by Dr Tom Calma (current Aboriginal and Torres Strait Islander Social Justice Commissioner) and Jackie Huggins (author and former co-chair of Reconciliation Australia), conducted extensive nationwide consultations between July 2008 and August 2009. The Committee outlined a proposal for a new representative model in the report *Our future in our hands* (Australian Human Rights Commission, n.d.) and appointed the first board to establish the organisation. On 19 April 2010, the Congress was officially incorporated. The first annual forum of members, known as the National Congress meeting, took place in 2011.

Impact of policy

Past and present policies and the colonial treatment of Aboriginal people have influenced the attitudes and behaviours of many white Australians towards Aboriginal people (Ranzijn et al., 2009). They have also been responsible for the marginalisation and disadvantage of large numbers of Aboriginal people resulting in the poor health and socioeconomic disparities that we are witnessing today.

Despite all the policies and programmes, statistics that compare Aboriginal peoples with the rest of the Australian population show that disadvantage still exists. Examples include disparity in life expectancy: 69.1 years for males compared to 79.5 for non-Indigenous males and 73.7 years compared to 83.2 for non-Indigenous females (Australian Institute of Health & Welfare (AIHW), 2015). In 2012–13, the Aboriginal

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and Torres Strait Islander unemployment rate was 4.2 times higher compared to non-Indigenous people (AIHW, 2015). Compared with non-Indigenous Australians, Aboriginal and Torres Strait Islander peoples are more likely to have certain types of health conditions such as respiratory diseases, cardiovascular disease, diabetes, chronic kidney disease and cancer deaths, and for many of these, experience earlier onset. They also have a continued high occurrence of certain diseases that are now virtually unreported in the non-Indigenous population, such as trachoma and acute rheumatic fever (AIHW, 2015). In 2012–13, almost one third (30%) of Aboriginal and Torres Strait Islander adults were assessed as having high or very high levels of psychological distress, and were 2.7 times as likely to have these problems as their non-Indigenous counterparts (AIHW, 2015). In 2012–13 Aboriginal and Torres Strait Islander peoples were hospitalised for mental health conditions at twice the rate of non-Indigenous people (AIHW, 2015). In 2008–12, the suicide rate for Aboriginal and Torres Strait Islander peoples was almost twice the non-Indigenous rate – and for 15–19-year olds, the rate was five times as high as the non-Indigenous rate.

These are some of the ways in which the history of dispossession and colonisation continues to impact contemporary relationships and expectations, attitudes and values, as well as health and wellbeing, and are challenges that social workers must recognise and to which they must be trained and equipped to respond.

Social work and Aboriginal peoples

The development and implementation of legislation, policies and practices, as outlined in this chapter, have taken place at every level of society inclusive of government, state and religious organisations and involved many different professions. Prominent among these is social work which has played a major role in the welfare policies and practices aimed at Aboriginal peoples. However, because of a history of mistrust of white authority, there is a level of distrust and suspicion of social workers within many Aboriginal communities, families and individuals.

Social workers continue to hold central roles in areas such as child protection and physical and mental health where past incompetences and injustices have occurred. It is necessary for all social workers, irrespective of their cultural backgrounds, to take a proactive stance for Aboriginal people and their rights.

Social workers have acknowledged that their relationships with Aboriginal people must change, and as part of this the Australian Association

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of Social Workers (AASW), in its Acknowledgement Statement to Aboriginal and Torres Strait Islander People (AASW, 2004, p. 21), recognises that:

> … the social work profession responded to Aboriginal and Torres Strait Islanders in accordance with the prevailing values, norms and policies of that time, which resulted in the displacement, isolation and continuing attempts at assimilation of their people. (AASW, 2004, p. 21)

The statement goes on to acknowledge the 'role that non-indigenous social workers had in the creation of the stolen generations', saying that a commitment has been made by the profession:

> … to working with communities to heal the past, grieve the losses and rebuild family and community structures, to achieve better social, cultural and economic outcomes for Aboriginal and Torres Strait Islander people. (AASW, 2004, p. 21)

In 2010 the Australia Association of Social Workers involved a group of Aboriginal and Torres Strait Islander social workers in revising the profession's *Code of Ethics*. The result was a code that now formally states:

> Social workers commit to acknowledge and understand the historical and contemporary disadvantage experienced by Aboriginal and Torres Strait Islander peoples and the implication of this for Social Work Practice. Social Workers are responsible for ensuring that their practice is culturally competent, safe and sensitive. (AASW, 2010, p. 5)

There has been a growing awareness of the need to understand some of the legacies of past actions. The past relationships and current reinforcement of those beliefs remain a challenge for social work professionals. Developing knowledge about the history of Aboriginal peoples in Australia and recognising what this means for Aboriginal people today is a fundamental part of this process.

Social workers should ensure that all aspects of their practice involve Aboriginal people as active participants. The profession needs to be committed to social justice, which encompasses the pursuit of basic needs, fair access to services and benefits, and the recognition of individual and community rights (Calma & Priday, 2011). Social workers have a role in exposing service gaps and advocating for these rights.

Social work practices need to focus on locally owned, sustainable interventions that incorporate collaborative and strategic partnerships. For Aboriginal people, the processes of achieving these goals are often as

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important as actual outcomes. Culturally safe and respectful social work processes facilitate the development of collaborative relationships that have the scope to teach people the skills and knowledge that is required for people to become broadly independent from social workers and welfare services (Bennett et al., 2011).

Conclusion

The successful future of social work is dependent on collaborative and culturally responsive practice. This practice needs to be for, with and by Aboriginal people and involve partnerships that are based on trust, respect, transparency, reflective practice and an effort to understand diversity and accept it at all levels. Aboriginal people need to know who they are, where they have come from and where they want to go. Developing culturally responsive social work practice is not a luxury; rather it is a necessity, not only for the healing of Aboriginal people, but also for healing of all Australians now sharing the legacy of colonisation.

We need to further develop social work by not only by adapting the practice, but acknowledging and implementing Aboriginal knowledge systems and that can only occur through learning from Indigenous peoples. These lessons can be utilised to strengthen social work. Kee (2007) argues for the need for both an Indigenous practice approach and also 'a dialogic understanding of both to develop a culturally appropriate practice framework' (p. 162).

Social workers need to be thinking about diversity and have respect for difference as well as accepting a commitment to the eradication of oppression and disadvantage. There are numerous reports that describe the legacy of colonisation, which include effects on socioeconomic outcomes, health, education, housing, employment status, involvement in the criminal justice system, family violence, substance abuse and poverty. Aboriginal people need to be given more power in decision-making, together with the resources to make the changes needed. A holistic approach that is functional and participatory with real collaborative practices is the only way forward to fight complex and ongoing issues.

Discussion questions

1. After reading about the policies and procedures of the past, how do you think social work has contributed to the current disadvantage of Aboriginal peoples? Has it had any successes and what are these?

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2. What can social workers learn from the past, and how can they apply these lessons to future engagement/relationships with Aboriginal people?
3. What do you think your responsibilities are in working on your cultural responsiveness? How could you do this?

Acknowledgement

I acknowledge the Traditional Custodians of this land and the Elders past, present and emerging. This chapter is written from a Gamilaraay perspective.

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